

## **Bhabasindhu Mondal vs Sagarika Mondal on 11 May, 2015**

**Author: Harish Tandon**

**Bench: Harish Tandon**

55 11.05 C.O. 1582 of 2015 AGM 2015 Bhabasindhu Mondal Versus Sagarika Mondal Mr. Gobinda Choudhuri, Ms. Ananya Neogi, .... For the Petitioner.

This revisional application is directed against an order No. 12 dated January 21, 2015 passed by the learned Additional District Judge, Fast Track Court - III, Barrackpore, North 24 Parganas in Matrimonial Suit No. 300 of 2013 by which an application under Section 24 of the Hindu Marriage Act, 1955, is disposed of directing the petitioner to pay a sum of Rs. 5,00/- per month to the wife and Rs. 2,500/- each for two minor daughters apart from the litigation costs. .

In a proceeding under Section 9 of the said Act, an application is taken out by the wife praying for maintenance for herself as well as two minor daughters who are admittedly residing with her. Admittedly, the petitioner is employed as UDC (Accounts Section), Sales Tax Department, Government of West Bengal. The wife alleges that the income of the husband is approximately Rs. 50,000/- per month, which has been denied by the husband/petitioner.

The salary certificate annexed to this revisional application reveals that the gross salary of the petitioner for the month of March 2015 is 31,158/-. After the statutory deduction, the net amount which the petitioner takes home is Rs. 22,328/-.

While adjudicating/determining the quantum of maintenance, the Court shall not take into account the voluntary deduction allowed to be deducted from the monthly salary by the husband. It is submitted on behalf of the petitioner that the petitioner has to bear the burden of two unemployed brothers and, therefore, the quantum of maintenance awarded by the tribunal is too excessive.

It is undeniable that the petitioner has two minor daughters from the wedlock. It is not only his moral and social obligation but the statutory one to provide maintenance to the wife and the children. The petitioner can not shirk his responsibility on the pretext that the two brothers are dependent upon him. Furthermore, considering the monthly salary as reflected in the salary certificate annexed to this revisional application, the amount of Rs. 10,000/- towards the maintenance of the wife and the two minor children cannot be said too excessive.

The trial Court has applied the one-third ratio and, therefore, this Court does not feel that the order needs any interference.

The revisional application fails. No costs.

( Harish Tandon, J.)